

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

August 6, 2026

8:30 a.m./1:30 p.m.

6. SARAH LESTER V. JASON LESTER

23FL1169

Order to Show Cause

On February 17, 2026, Petitioner filed an Order to Show Cause and Affidavit for Contempt (OSC) alleging 51 counts of contempt for failure to pay court ordered child support. It was personally served on February 21st.

On May 7, 2026, the court found Respondent does not qualify for the services of the Public Defender. The court continued the matter to allow Respondent additional time to secure counsel. Respondent waived time to a speedy trial.

The parties appeared before the court for arraignment on the OSC on July 16, 2026. At that time the matter was continued to the present date.

The parties are ordered to appear for the arraignment.

Request for Order

On May 14, 2026, Respondent filed a Request for Order (RFO) seeking spousal support orders and requesting to clarify travel orders and modify travel costs. He filed his Income and Expense Declaration concurrently therewith. All required documents were served on May 20th.

Petitioner filed a Responsive Declaration to Request for Order on July 21st. It was served on Respondent only on July 19th and on Minor's Counsel on July 22nd. Petitioner has not filed an Income and Expense Declaration.

Respondent filed and served his reply declaration on July 28th.

Respondent is requesting termination of spousal support based on the fact that Petitioner is cohabiting with her significant other. He further asks that Petitioner be ordered to pay travel costs for Respondent's visits with the children and that these costs be deducted from child support. He is requesting 25 days' worth of make-up time for missed visits with the children and in the future, if Petitioner withholds the children visits, Respondent asks that make up time is to occur within 6 weeks of the missed visit.

Petitioner opposes the requests and she denies that Respondent has missed 25 visits with the minors.

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Regarding the request for 25 make-up visits, that request is denied as Respondent has failed to prove that he did in fact miss 25 visits. That said, moving forward Petitioner shall not unilaterally withhold the children from their visits with Respondent. If Petitioner unilaterally decides to withhold the children from their visit, then the parties are ordered to schedule make-up time within six weeks of the missed visit. All prior orders regarding payment of the costs for visits remain in full force and effect.

Regarding the request to modify spousal support, it is unclear to the court if Petitioner is actually cohabiting with her significant other or if she denies that allegation. The parties are ordered to appear for the hearing on this issue.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #6: THE PARTIES ARE ORDERED TO APPEAR FOR THE ARRAIGNMENT. THE PARTIES ARE ORDERED TO APPEAR FOR THE HEARING ON THE ISSUE OF SUPPORT.

REGARDING THE REQUEST FOR 25 MAKE-UP VISITS, THAT REQUEST IS DENIED AS RESPONDENT HAS FAILED TO PROVE THAT HE DID IN FACT MISS 25 VISITS. THAT SAID, MOVING FORWARD PETITIONER SHALL NOT UNILATERALLY WITHHOLD THE CHILDREN FROM THEIR VISITS WITH RESPONDENT. IF PETITIONER UNILATERALLY DECIDES TO WITHHOLD THE CHILDREN FROM THEIR VISIT, THEN THE PARTIES ARE ORDERED TO SCHEDULE MAKE-UP TIME WITHIN SIX WEEKS OF THE MISSED VISIT. ALL PRIOR ORDERS REGARDING PAYMENT OF THE COSTS FOR VISITS REMAIN IN FULL FORCE AND EFFECT.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF

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A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.